

		costs on Plaintiff” (Opp. at p. 7)—the cost provision in the MVOA requires defendant to bear all costs of arbitration. It states: “[Tesla] will pay all AAA fees for any arbitration, which will be held in the city or county of [plaintiff’s] residence.” (Kim Decl. at Ex. 1, p. 3; Sanders Decl. at Ex. 1, p. 3.) Plaintiff has not acknowledged or addressed this language in her opposition brief, and has not shown or explained how she may have to shoulder any costs unique to arbitration under the terms of the MVOA. (See Opp., in passim.) Plaintiff has therefore failed to show that the agreement’s cost provisions are substantively unconscionable. (See <i>Engalla, supra</i>, 15 Cal.4th at p. 972 [burden]; see also <i>City of Monterey v. Carrnshimba</i> (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a party’s argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 [“It is not the court’s function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments.”].) Defendant’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) The case management conference is VACATED. The court ORDERS this action stayed pending completion of arbitration or until further order of the court. (Code Civ. Proc., § 1281.4.) The court sets a status conference regarding the arbitration for January 22, 2027 at 9:00 a.m. in Department C28. Five days before the scheduled conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendant shall give notice of this ruling.
57.	Doe 9011 v. Fullerton School District 2025-01473413	Defendant Fullerton School District’s unopposed motion for leave to file a cross-complaint is GRANTED. The proposed cross-complaints is compulsory, and is governed by C.C.P. § 426.50. It provides that “the court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith.” This provision “shall be liberally construed to avoid forfeiture of causes of action.” Here, there is no evidence of bad faith.

		Defendant has attached the proposed pleading to the moving papers. However, defendant must electronically file the cross-complaint separately with the clerk's office so that there is a proper record of the pleading. Defendant shall separately file the cross-complaint within three days. Defendant shall give notice of this ruling.
58.	Ray v. General Motors, LLC 2023- 01318172	Plaintiff Adam Ray's motion for attorney fees and costs is GRANTED. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiff is awarded attorney fees in the amount of \$13,793.00, which amount the court finds was reasonably and necessarily incurred. The court has reduced the fees sought based on excessive fees claimed for a motion to compel, and based on hours solely related to the fraud claim (which is not within the statutory mandate under which Plaintiff is awarded fees). The court finds that the attorney's hourly rates appear proper. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) Plaintiff's request for a multiplier is DENIED. This appears to be a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [multiplier factors].) Plaintiff's request for \$1,844.12 in costs is also GRANTED. Plaintiff's evidentiary objections to Defendant's declaration are OVERRULED. The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4.